



Our ref: IM-72964

31 July 2025

Dear Interested Party

Request for submissions: Yamaha's proposed acquisition of Telwater

The Australian Competition and Consumer Commission (**ACCC**) is seeking your views on the proposed acquisition of Telwater Pty Ltd (**Telwater**) and the property at 45-65 Waterway Drive, Coomera, Queensland by Yamaha Motor Australia Pty Ltd (**Yamaha**) (the **Proposed Acquisition**).

Yamaha Motor Company Ltd (**YMC**) manufactures outboard motors in Asia (primarily in Japan) and Yamaha imports and supplies them to its authorised dealer network (retailers) in Australia. Telwater manufactures aluminium trailer boats and trailers in Australia and supplies them to dealers. Telwater also supplies a limited number of outboard motors to dealers as part of a package, with a Telwater boat and also potentially a trailer. Trailer boats are generally used for leisure activities, such as fishing and cruising. Recreational trailer boats typically use an outboard motor. Further details are provided at **Attachment A**.

The ACCC's investigation is focused on the impact on competition. In particular, we are seeking your views on:

- the potential for the merged entity to link the sales of trailer boats with sales of outboard motors, and vice versa
- the availability of alternative manufacturers of aluminium trailer boats
- the availability of alternative suppliers of outboard motors
- the likelihood of new entry or expansion in the supply of trailer boats and/or outboard motors, and
- the likely impact of the Proposed Acquisition on prices, range, quality and/or service levels in the supply of trailer boats and outboard motors.

Further issues you may wish to address are set out in **Attachment B**.

This matter is public and you can forward this letter to anybody who may be interested.

The legal test which the ACCC applies in considering the proposed acquisition is in section 50 of the *Competition and Consumer Act 2010*. Section 50 prohibits acquisitions that are

likely to have the effect of substantially lessening competition in a market.

Please provide your response by **4pm on 14 August 2025** via email to mergers@accc.gov.au, with the title: *Submission re: Yamaha / Telwater*. If you require more time to respond, please let us know.

If you would like to arrange a time to discuss the matter with ACCC officers, or have any questions about this letter, please contact mergers@accc.gov.au.

Updates regarding the ACCC's investigation will be available on the ACCC's Public Mergers Register at ([ACCC mergers register](#)).

Confidentiality of submissions

The ACCC treats sensitive information it receives during a merger review as confidential, and will not publish your submission. We will not disclose submissions to third parties (except our advisors/consultants) unless compelled by law (for example, under freedom of information legislation or during court proceedings) or in accordance with s155AAA of the *Competition and Consumer Act 2010*. Where the ACCC is required to disclose confidential information, we will notify you in advance where possible so that you have an opportunity to be heard. Therefore please clearly indicate if any information you provide is confidential. Our [Informal Merger Review Process Guidelines](#) contain more information on confidentiality.

Yours sincerely

A handwritten signature in blue ink, appearing to read 'Morag Bond', is positioned above the typed name.

Morag Bond
General Manager
Merger Assessments

Attachment A

Proposed Acquisition

On 1 April 2025, Yamaha entered into agreements with Bombardier Recreation Products Inc (**BRP**) and BRP Australia Pty Ltd (**BRP Australia**) to acquire 100% of the shares in Telwater and a property at 45-65 Waterway Drive, Coomera, Queensland, that is currently used to manufacture, fit and warehouse aluminium trailer boats.

Yamaha

YMC manufactures outboard motors in Asia (primarily in Japan) and Yamaha imports them into Australia. It supplies the outboard motors directly to its dealers in Australia, who then re-supply them to end-customers. Yamaha currently supplies outboard motors to approximately 104 dealers in Australia.

Yamaha does not manufacture trailer boats in Australia. YMC subsidiaries manufacture trailer boats overseas for various international markets. Yamaha and a related business have supplied a small number of these trailer boats to dealers in Australia, primarily via a third party Australian distributor. Yamaha also owns the trademarks for a small number of aluminium trailer boat and trailer brands, which were previously licensed to a third party manufacturer and are not currently in use. Yamaha does not supply trailers for boats in Australia.

Telwater

Telwater is a manufacturer and wholesale supplier of aluminium trailer boats and trailers in Australia. Telwater currently supplies aluminium trailer boats under the Stacer, Quintrex and Yellowfin Plate brands. Telwater supplies both custom-fitted trailers that are sold together with Telwater boats (under the same brand as the boat) and loose trailers (under the brand name "Move") that can be used for any trailer boat. Telwater supplies its trailer boats and trailers to dealers, who then re-supply them to end customers.

Telwater also supplies a limited number of outboard motors to dealers as part of a package with a Telwater boat and trailer. Telwater is a non-exclusive distributor of Mercury outboard motors, with Mercury also supplying its outboard motors to dealers itself and via other wholesalers. Telwater also supplies a very small number of Rotax outboard motors (which are manufactured and distributed by BRP), as part of a package with certain of its boats. BRP is not included in the Proposed Acquisition and may continue to manufacture and distribute its Rotax motors in Australia post-acquisition.

BRP Australia is currently a wholesale supplier of pontoon boats named "Sea-Doo Switch" (which is supplied with a trailer) and personal watercrafts under the Sea-Doo brand (which can be supplied with a trailer). These product offerings are not part of the Proposed Acquisition.

BRP and BRP Australia do not otherwise supply boats, boat trailers or outboard motors in Australia.

Area of overlap

Yamaha and Telwater both supply outboard motors to dealers (retailers) in Australia. While outboard motors are used on a variety of boats, including trailer boats, Telwater only supplies outboard motors as part of a package with one of its trailer boats.

Telwater manufactures and supplies aluminium trailer boats to dealers in Australia. Yamaha does not overlap with Telwater in the supply of trailer boats to dealers.

Attachment B – List of Questions

1. To better understand your views, describe your business or organisation and explain your interest in the Proposed Acquisition, including any commercial relationship/s with Yamaha and/or Telwater.

Questions for trailer boat and outboard motor dealers

2. Describe the range of trailer boats and/or outboard motors that you retail and explain the importance of that range when competing against other trailer boat and/or outboard motor dealers.
3. Describe how trailer boat suppliers and/or outboard motor suppliers compete to supply you (as a dealer) with boats and/or outboard motors. In your response, please:
 - a. identify the trailer boat and/or outboard motor suppliers which compete for your business
 - b. explain the factors you consider when selecting a brand of trailer boats and/or outboard motors to stock, including when deciding whether or not to retail more than one brand of trailer boat or outboard motor
 - c. identify whether you have switched brands of trailer boats and/or outboard motors in the past, and if so, explain the factors which caused you to switch brands
 - d. identify whether you have switched, or considered switching, between retailing aluminium and fibreglass trailer boats, and explain the factors that you considered.
4. Outline the contractual arrangement/s your dealership/s have with trailer boat and/or outboard motor suppliers, including whether it is a franchise or other relationship and whether there are exclusivity obligations.
5. To what extent do you currently purchase a bundled package that includes a trailer boat and outboard motor (and may also include a trailer) from your supplier? Discuss why or why not.
6. If the Proposed Acquisition proceeds and the merged firm was to offer a bundled Telwater trailer boat /Yamaha outboard engine product (either offering discounts if the products are purchased as a package or *only* offering to supply a Telwater boat with a Yamaha engine), what would you do? In your response, you may wish to consider whether:
 - a. Telwater trailer boats and/or Yamaha outboard engines are 'must-have' products in your range
 - b. you would be able to obtain competitive bundles of trailer boats and outboard motors from other suppliers.
7. Would you consider purchasing a bundled Yamaha outboard engine /Telwater trailer boat product if offered in future? Discuss why or why not.

Questions for trailer boat and/or outboard motor manufacturers/suppliers

8. Who are your main competitors in the manufacture and supply of trailer boats and/or outboard motors?
9. Describe the distribution channels for your products in Australia. In your response, please describe:
 - a. how many dealers you currently have in Australia, broken down by state or territory
 - b. the nature of your dealership network, including whether it comprises independent and/or franchise dealers
 - c. whether, and to what extent, you retail directly to consumers.
10. Describe the range of trailer boats and/or outboard motors (as applicable) that you manufacture or supply and the importance of that range when competing against rivals.
11. To what extent do you supply a bundled package that includes at least a trailer boat and outboard motor (and may also include a trailer) to dealers or directly to consumers? Discuss why or why not.
12. If the Proposed Acquisition proceeds and the merged firm was to offer a bundled Yamaha outboard engine /Telwater trailer boat product, how would this offering impact your ability to compete with the merged firm?
13. Outline the main factors that must be overcome to commence supplying, or to expand supply of trailer boats or outboard motors (as applicable). In your response, you may wish to consider:
 - a. the time and costs involved with entry or expansion, including the importance of growing or having access to an extensive distributor network
 - b. the scale necessary to supply trailer boats or outboard motors (as applicable) at competitive prices, including for manufacturing or distribution facilities, or any network effects
 - c. any other barriers.

Provide recent examples of new entry or expansion where possible.

Other information and competition issues

14. Provide any additional information or comments that you consider relevant to the ACCC's consideration of the Proposed Acquisition.